

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES PROPP,

Petitioner

VS.

DENISE CHILDERS,

Respondent

) Case Number: FDI-14-781786

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER:

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner James Propp and Respondent Denise Childers.
- 2) On 12/23/25, Petitioner filed a Request for Order seeking bifurcation and termination of marital status.
- 3) There is no Proof of Service on file indicating Petitioner's 12/23/25 Request for Order was served on Respondent.
- 4) Petitioner's Request for Order does not include mandatory form FL-315 (Request or Response to Request for Separate Trial).
- 5) At the prior 3/3/26 hearing, the Court continued the matter to 7/7/26 for lack of service and because Petitioner must file mandatory form FL-315 (Request or Response to Request for Separate Trial) before his Request for Order seeking bifurcation and termination of marital status can be adjudicated.
- 6) There is still Proof of Service on file indicating Petitioner's 12/23/25 Request for Order was served on Respondent.

1 7) Petitioner did not file mandatory form FL-315 (Request or Response to Request for Separate
2 Trial).

3 **B. Findings and Order**

4 1) The Court finds good cause to VACATE the 7/7/26 hearing on Petitioner's 12/23/25 Request for
5 Order for lack of service and failure to file mandatory form FL-315 (Request or Response to
6 Request for Separate Trial). Petitioner was provided additional time to cure these defects and
7 failed to do so.

8 2) Petitioner's 12/23/25 Request for Order seeking bifurcation and termination of marital status is
9 therefore DENIED without prejudice.

10 3) The Court will prepare the Findings and Order After Hearing.
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